63 V2 User Letter Trademark Violation / Fraudulent Generics

2025-02-24

Valid for: All products / CQUs/GBSs/RQUs

GSOP 115, section 5.1.1.1 defines perquisites when cases can be closed as non-processable cases (Local Closure). In addition to these requirements, with this user letter it is allowed to close “Trademark Violation” and “Fraudulent Generic” incident cases with local closure as non-processable cases if it is confirmed that the product in question is not a Bayer product / produced by any Bayer site/third party. If deemed necessary, a final assessment can be provided.

Note: all suspected or confirmed “Trademark Violation” and “Fraudulent Generic” have to be forwarded to:

- Contact PH = Christian Schalk
- Contact CH = Max Wenger / Kristina Kersten

Social media related topics:

- Contact PH/CH = Petra Luh

IQMS Attribute	Content
Feedback Type:	Suspected Counterfeit / Falsification
Short description:	Product / Trademark Violation / Fraudulent Generic
Batch / Serial Number Status:	Unknown batch / serial number ***Do not create a batch manually, add material number only***
Material Number:	UNKNOWN FRAUDULENT
Impacted Organization	Fraud/Trademark violation
Owning Organization	Country organization e.g. CO USA (US03)
Counterfeit / Falsification Confirmed?	Yes
Conclusion	Confirmed Counterfeit (Trademark Violation) or Confirmed Counterfeit (Fraudulent Generic) from Unknown Source etc.
Immediate Escalation Required?	Yes (Escalation to CQH via Immediate action or communication protocol (notification) based on local requirements)
Local Closure	Yes
Rationale for Local Closure	Per Guidance Document
Initial Error codes	Level 1,2,3: Documentation / Documentation / Documentation

This User letter remains valid until further notice.

Abbreviations: CQU = Country Quality Unit; GBS = Global Business Services; RQU = Responsible Quality

Support: Global Complaint Management
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INTERNAL